

**ATTACHMENT 29 – LETTER FROM ENVIRONMENTAL INTERIORS, INC. TO
MODERN CONTINENTAL COMPANY (MCC) DATED MARCH 9, 1999
WITHDRAWING A PROPOSAL FOR A CELLINE METAL PANEL CEILING
SYSTEM
(5 pages)**

ENVIRONMENTAL INTERIORS INC.

March 9, 1999

Mr. John Pastore
Mr. Bob Coutts
Modern Continental Construction Company
6 Necco Way
Boston, MA 02210

RE: C09B2 - Seaport Access Tunnel Finishes
VECP #1 Celline® Ceiling System

Dear John & Bob,

Please be advised that we are withdrawing our various proposals for the use of our Celline® ceiling system in lieu of the precast concrete ceiling panels and support systems specified for this project. Unfortunately, our extended efforts continue to be met with significant resistance from the project design team. We have been unable to overcome this resistance, primarily due to the Authority's unwillingness (or inability) to provide specific numerical standards, ASTM designations etc. for our compliance. Alternatively, we have been faced with vague and repeated "concerns" about vibration, corrosion and life cycle cost without further specific performance criteria. Our proposals have complied with every specified performance criteria from the contract documents and we have provided evidence that our G235 galvanized and epoxy coated Celline® system would provide the Authority with its desired (not specified) 75 year life cycle. Despite our effort, the Authority and its design team have put us through several iterations of our VECP proposal, each resulting in cost increases and all without basis in hard factual data and without relation to the contract documents.

We sincerely appreciate Modern Continental's support of Environmental Interiors VECP initiative for our Celline® system. As you know, our relatively small company has expended significant hard and soft costs (over \$100,000.00) in proposing, engineering, and submitting this VECP initiative. In return for these efforts, we respectfully request that Modern Continental Construction Company favor us with an award to provide material, engineering, and installation services to provide 14 gauge Celline® plenum sidewall panels and restraint angles for this project in accordance with our attached proposal. It is our understanding from our discussions that the pricing that we are providing is significantly below your bid day estimate for this work and represents even further savings over your current buyout number for this work (possibly making this a candidate for VECP submission). We have also provided you with a deduct alternate should you elect to install this material with your own forces.

We would appreciate your prompt and favorable response to this proposal.

Sincerely yours,

John C. Montgomery
President

JCM/tr/CAT030999

CC: Mr. Brian McNamara - Modern Continental Construction Company
Mr. Bob Berry - Modern Continental Construction Company

13 River Rd., Hudson, NH 03051
(603) 889-9290
FAX (603) 889-1147

ENVIRONMENTAL INTERIORS INC.

CONSTRUCTION PROPOSAL

13 River Road, Hudson, N.H. 03051
Tel. (603) 889-9290 Fax (603) 889-1147

Estimate No. 12291R5
Date 3/10/99

Mr. Robert Coutts
Mr. John Pastore
Modern Continental Construction Company
6 Necco Court
Boston, MA 02210

RE: Central Artery/Tunnel Project
I-90 Seaport Access Tunnel Finishes - C09B2
Boston, MA

Gentlemen:

We propose to furnish and install Environmental Interiors, Inc. Celline® Metal Panels at the Plenum Side Wall conditions at the referenced project for the sum of **\$2,183,000.00** as follows:

1. System Design:

- 14 gauge G-235 galvanized steel with epoxy paint coating at all vertical Celline® panel system components constituting the side wall assembly.
Celline® panels to be installed with panel joints to the exposed roadside.
- 12 gauge restraint angles at the top and bottom of wall panels.

2. Inclusions:

- A. Environmental Interiors, Inc. Celline® Ceiling System as detailed on Environmental Interiors, Inc.'s drawings A1, A2, and A3 dated 12/1/98 for use at the following areas only:
 - 1. Celline® ceiling system (vertical panels only) - 161,500 s.f. (includes "chute" walls)
- B. Celline® panels (vertical) to be 14 gauge x 12" wide x sidewall height.
- C. Celline® panels are to be G-235 galvanized steel with a 4 mil epoxy paint coating (color as specified) on all exposed side wall surfaces only.
- D. Installation only of 94 steel access doors with associated framing at side wall conditions. Doors to be provided by others.
- E. Joint sealant concealed in the sidelaps of all Celline® planks within the plenum area only.
- F. All non-fireproof sealant required at top and bottom restraint angles of the plenum sidewalls.
- G. Neoprene gasketing on vertical flanges of top and bottom Celline® restraint angles within the plenum area.
- H. Includes the allowance of 1,000 lineal feet of "alternate upper connection" to concrete inserts indicated on S-280. Gauge and sizing of members to be limited to engineers' requirements to meet system loads and safety factors.
- I. Includes allowance of 200 plate assemblies at pull box interference indicated in Section C/S-280.
- J. Includes clean up to a central location in each work area for removal and disposal by others.

Pricing good thru _____ based on receipt of acceptable signed acknowledgement by _____.

This proposal includes and is subject to the terms and conditions on the reverse side of this sheet

Accepted: ENVIRONMENTAL INTERIORS, INC.
By
Date By See Page 3

13 River Road, Hudson, N.H. 03051
Tel. (603) 889-9290 Fax (603) 889-1147

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3. Exclusions:

- A. All work not specifically included above and beyond the scope of vertical panels and top and bottom restraint angles.
- B. Any DBE participation.
- C. State and local sales and use taxes.
- D. All "red iron".
- E. Form deck at "ramp L" and Vent Building #5 curved plenums (S-363).
- F. Steel framing at plenum walls greater than 12' – 6" height (Detail E/S-334).
- G. Steel framing at Vent Building #5 (Drawings S-329 through S-336).
- H. Any and all work in Sections 727.900 Joint Sealants, 729.870 Galvanizing, 729.871 Coating Systems, 729.900 Painting and 960.050 Miscellaneous Metals For Buildings if not specifically listed as included above.
- I. Protection and final cleaning of work in place. General contractor to promptly reimburse us for cost of repair or replacement of any damaged work in place.
- J. Any and all mechanical and/or acoustical engineering, and any and all costs associated with compliance with mechanical or acoustical requirements.
- K. Any and all required testing and/or inspection services.
- L. Furnishing of access doors.
- M. Hoisting and distribution of our materials, tools, and equipment is to be provided by others. All materials and equipment to be distributed to each work area.
- N. All provisions associated with Section 4.14 Interim Structures, facilities and systems. All provisions required for construction are to be provided by others.

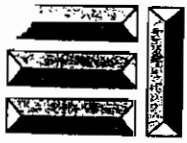
4. Qualifications/Clarifications:

- A. We acknowledge Addendum #1, #2, #3, #4, #5, #6, #7, #8, #9, #10, #11, #12 and #13
- B. We will requisition for shop drawings and engineering upon submittal at the rate of 5% of our contract value. We will requisition for mobilization at the rate of 5% of our contract value (2 ½ % at signing and 2 ½ % at start). We will requisition for stored materials when they are manufactured. Each requisition will include appropriate transfers of title and certificates of insurance. All of our requisitions will be due and payable in full within thirty (30) days of invoice.
- C. Material lead time to begin delivery for Celline® metal panels is approximately sixteen to twenty-four weeks from the date of our receipt of fully approved shop drawings and submittals.
- D. All work to be performed in clear, unoccupied areas during normal, straight time, weekday working hours.
- E. General contractor is to provide us with two complete conformed sets of contract drawings, specifications, and addenda at no charge to Environmental Interiors, Inc.

Pricing good thru _____ based on receipt of acceptable signed acknowledgement by _____.

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Accepted: ENVIRONMENTAL INTERIORS, INC.



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CONSTRUCTION PROPOSAL

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- F. Final design to be reviewed and approved by the Project Authority. The scope of our engineering services shall be strictly limited to our preparation of architectural, shop drawn plenum side wall plans and details accompanied by a letter from a Massachusetts Registered Professional Engineer confirming compliance with specified structural load criteria.
 - G. This is a value-engineered proposal that includes variations from the contract documents. Our scope is strictly limited to the items specifically included in this proposal.
 - H. Based on all installation being performed by the New England Regional Council of Carpenters. If we are required to utilize another craft jurisdiction, Modern Continental agrees to pay an additional \$117,000.00. This amount shall be prorated if a composite crew is required.
5. Alternate Pricing Option:

We propose to **furnish only** all required Celine® panels and restraint angles, as further described and clarified above, for the lump sum price of \$1,138,000.

Pricing good thru 3/1/00 based on receipt of acceptable signed acknowledgement by 3/31/99

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ENVIRONMENTAL INTERIORS, INC.